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No. 2

A MEASURE passed by the National Assembly of the
Church of England

To make further provision in relation to diocesan stipends
funds established by the Reorganisation Areas Measure,
1944, and the Pastoral Reorganisation Measure, 1949,
and for that purpose to amend those Measures and
for purposes connected therewith.

[26th March 1953.]

Capital and
income
accounts of
diocesan
stipends funds.

1.—(1) The Church Commissioners (in this Measure called
“the Commissioners”) shall open on the appointed day and
thereafter keep two accounts for every diocesan stipends fund
established under the Reorganisation Areas Measure, 1944, or
the Pastoral Reorganisation Measure, 1949, namely a capital
account and an income account.

(2) Subject to the provisions of section three of this Measure
the Commissioners shall allocate to the capital account and
income account of each diocesan stipends fund all moneys and
other property held by them on behalf of that fund on the
appointed day in such proportions as they after consultation
with the bishop and the diocesan board of finance shall deter-
mine and shall apportion between the capital account and income
account of each fund all charges subsisting thereon on the
appointed day in such manner as they after such consultation
as aforesaid shall determine.

Moneys to be
allocated
to capital and
income
accounts.

2. Subject to the provisions of section three of this Measure
the Commissioners shall after the appointed day :—

(a) allocate to the capital account of each diocesan stipends
fund—

(i) any payment (not being a periodical payment)
which may be made by the Commissioners to that
fund under the provisions of paragraph (b) of sub-
section (1) of section sixteen of the Measure of 1944 ;

(ii) any legacy not expressly directed or declared
to be applicable as income and any donation or other
contribution expressly directed or declared to be
applicable as capital which may from time to time
be received for the credit of or be allocated to that
fund under the provisions of sub-section (1) of section
thirty of the Measure of 1944 or sub-section (1) of
section eleven of the Measure of 1949 ; and

(iii) any other money or property received for the credit of that fund which the Commissioners after consultation with the bishop and the diocesan board of finance may determine to be of a capital nature ; and

(b) allocate to the income account of each diocesan stipends fund—

(i) any periodical payment which may be made by the Commissioners to that fund under the provisions of paragraph (b) of sub-section (1) of section sixteen of the Measure of 1944 ;

(ii) any legacy expressly directed or declared to be applicable as income and any donation or other contribution not expressly directed or declared to be applicable as capital which may from time to time be received for the credit of or be allocated to that fund under the provisions of sub-section (1) of section thirty of the Measure of 1944 or sub-section (1) of section eleven of the Measure of 1949 ;

(iii) any endowment income of a benefice in the diocese carried to the credit of or paid to the diocesan stipends fund under sub-section (7) of section five or of sub-section (1) of section twelve of the Measure of 1949 ;

(iv) the interest allowed on sums standing to the credit of the capital account of the fund ; and

(v) any other money or property received for the credit of that fund which the Commissioners after consultation with the bishop and the diocesan board of finance may determine to be applicable as income.

3.—(1) Any money or other property allocated by the Commissioners to the capital account or the income account of a diocesan stipends fund shall not be credited directly to such account but shall be taken over and held by the Commissioners as part of their general fund, and in lieu thereof the Commissioners shall credit the capital account or the income account (as the case may be) of the diocesan stipends fund with a sum charged upon their general fund of an amount equal in value as determined by the Commissioners to the money or other property taken over.

Provisions
as to moneys
so allocated.

(2) The Commissioners shall allow interest at such rate as they may determine upon all sums credited to the capital account of a diocesan stipends fund.

Application
of moneys
credited to
capital
accounts.

4. Subject to any charges imposed on the capital of the diocesan stipends fund of a diocese by any enactment or any scheme or order made under any enactment moneys standing to the credit of the capital account of such diocesan stipends fund may, at the discretion of the Commissioners on the special request of the bishop, made with the concurrence of the diocesan board of finance, be appropriated as an endowment fund held by the Commissioners for any benefice within the diocese or as an augmentation of any such endowment fund but in default of and subject to any such appropriation, shall be kept standing to the credit of the capital account.

Application
of moneys
credited to
income
accounts.

5.—(1) Subject to any charges imposed on the income of the diocesan stipends fund of a diocese by any enactment or any scheme or order made under any enactment moneys standing to the credit of the income account of such diocesan stipends fund shall be applied in providing or augmenting the stipends or other emoluments of incumbents or assistant curates licensed under seal or other persons who are declared by the bishop to be engaged in the cure of souls within the diocese.

(2) Such application as aforesaid shall be made in accordance with directions from time to time given with the concurrence of the diocesan board of finance by the bishop or by some person duly authorised by him.

Provisions
enabling
certain moneys
to be credited
under schemes
to diocesan
stipends funds.

6. Where under the provisions of any enactment the Commissioners are empowered to make in any scheme to be prepared by them for submission to Her Majesty in Council recommendations for the augmentation of any benefice, or proposed benefice, out of or by diversion of the revenues or endowments of any other benefice, such scheme may recommend in lieu of any such augmentation that the endowment income or any part of the endowment income of such last mentioned benefice shall be held by the Commissioners for the benefit of the diocesan stipends fund of the diocese in which that benefice is situate.

Accounts.

7. So soon as may be after the close of every year the Commissioners shall furnish to the diocesan board of finance a copy of the accounts for that year relating to the capital account and the income account respectively of the diocesan stipends fund.

Interpretation.

8.—(1) In this Measure the following expressions have the meanings hereby respectively assigned to them:—

“the appointed day” means the first day of April next following the passing of this Measure.

“the Measure of 1944” means the Reorganisation Areas Measure, 1944.

“ the Measure of 1949 ” means the Pastoral Reorganisation Measure, 1949. 12 & 13 Geo. 6 No. 3.

“ the bishop ” means the bishop for the time being of the diocese concerned (including during a vacancy in the see the guardian of the spiritualities thereof).

“ the diocesan board of finance ” means the diocesan board of finance of the diocese concerned.

(2) In paragraph (c) of sub-section (1) of section seventeen of the Measure of 1944 and in sub-section (7) of section five and sub-section (4) of section twelve of the Measure of 1949 and in this Measure the expression “ year ” means a period of twelve months beginning on the first day of April in any year and ending on the thirty-first day of March in the year following.

9.—(1) Where in any diocese there is a board of finance which, though not duly constituted in accordance with the provisions of the Diocesan Boards of Finance Measure, 1925, is recognised for the purpose of this Measure as being the diocesan board of finance, the provisions of this Measure shall apply in relation to that diocese as if the said board had been duly constituted. Provisions as to diocesan boards of finance not regularly constituted. 15 & 16 Geo. 5 No. 3.

(2) In this section the expression “ recognised ” means recognised by a certificate signed by the bishop and registered in the diocesan registry.

10. Sub-sections (2) and (3) of section thirty of the Measure of 1944 and sub-sections (2) and (3) of section eleven of the Measure of 1949 are hereby repealed. Repeals.

11.—(1) This Measure may be cited as the Diocesan Stipends Funds Measure, 1953. Short title and commencement.

(2) This Measure shall come into operation on the appointed day.

No. 3

A MEASURE passed by the National Assembly of the Church of England

To amend the Incumbents (Discipline) Measure, 1947, and the Church Dignitaries (Retirement) Measure, 1949, in relation to proceedings under those Measures in respect of social or political activities.

[6th May 1953.]